

ANNEXATION REPORT & STAFF REPORT

Rivett Summation

Annexation

CASE NUMBER: A-11-04 **FILE CODE:** RIVT-A

PUBLIC HEARING: November 14, 2011

REQUIRED DOCUMENTS: All required documents have been submitted and reviewed by staff.

RECOMMENDATION: Adoption of Resolution of Compliance



November 7, 2011

ANNEXATION REPORT & STAFF REPORT**Rivett**
Summation

Annexation

CASE NUMBER: A-11-04 **FILE CODE:** RIVT-A

OWNER: The Rivett Group, LLC 605-229-8631
PO BOX 4850
Aberdeed, SD 57402-4850

AGENT: John Steil 307-634-7273
c/o Steil Surveying Services, LLC
PO Box 2073
Cheyenne, Wyoming 82003

REQUEST: Annexation to the City of Cheyenne

LOCATION:

- (1) Legal Description: A portion of the Northeast Quarter (NE1/4) of Section 1, Township 13 North, Range 67 West of the 6th P.M.
- (2) Generally located north of and adjacent to West Lincolnway and east of and adjacent to the BNSF railroad
- (3) Address: TBD West Lincolnway
- (4) Map Page: D-103

CURRENT ZONING: CB

PROPOSED ZONING: No change

EXISTING LAND USES: Vacant commercial land (+/- 6.71 total acres)

PROPOSED LAND USE: Hotel expansion

COMPREHENSIVE PLAN DESIGNATIONS: The land-use plan in PlanCheyenne indicates the following designations for the area: *Mixed-Use Commercial Emphasis* (per *PlanCheyenne, 2006*). The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial, and live/work designed as an “activity center”. Parks, plazas and/or open space should also be part of the core of Mixed-Use Commercial areas. Apartments and townhomes and other residential uses are also encouraged as part of the mix of uses. Places of worship and other public or civic uses are also appropriate.

This annexation area and areas beyond are projected for Urban Growth.

DESCRIPTION OF SITE AND SURROUNDINGS:

SURROUNDING	LAND USE:	ZONING	ANNEXATION STATUS
North:	Vacant land, BNSF RR	LI	City
South:	Lincolnway, UP RR	LI	City and County
East:	Super 8 motel, vacant land	CB	City
West:	Vacant land, BNSF RR	MR-2	City

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Facing the subject property looking northwest



Facing the subject property looking west



- **Annexation Area** – This annexation area contains a 6.71-acre parcel of vacant land that is located between the existing Super 8 motel and the Burlington Northern-Santa Fe railroad on West Lincolnway (US Highway 30). It is a long, narrow parcel with approximately 200 feet of frontage on West Lincolnway and extends north more than 1,500 feet. On the west side of the property is a vacant railroad right-of-way and beyond that the BNSF railroad, which crosses over West Lincolnway. West of the railroad is a Subaru dealership with a Motel 7 north of it on Westland Road. The BNSF railroad curves northeast. North of the subject property is vacant land. East of the subject property is the existing Super 8 motel, which is under the same ownership as the subject property, vacant land that was once part of the Hitching Post, the Hitching Post property itself, and the Cheyenne Ice & Events Center. To the south across Lincolnway is the Union Pacific railroad.

CURRENT STATUS: The property is currently vacant land. Several mature pinion pine trees exist on the site near West Lincolnway, as well as other trees across the site, the west side of which slopes sharply downward.

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Improvements: The landowner will be required to comply with Chapter 1.16 of the Cheyenne City Code, which includes provisions for offsite improvements. Street improvements and a detached sidewalk are in place though access improvements may be required in coordination with WYDOT since Lincolnway is a US highway.

Sewer service is available to the property currently at the east side of the property adjacent to the east, which is under the same ownership as the subject property. Water lines exist in the adjacent Lincolnway. Subsequent development actions on this property may trigger additional improvements to be required. For example, landscaping including street trees and irrigation will be required at the time of development.

Platting: The property is currently unplatted. The owners have submitted a preliminary plat for the property, which will be processed concurrently with the annexation.

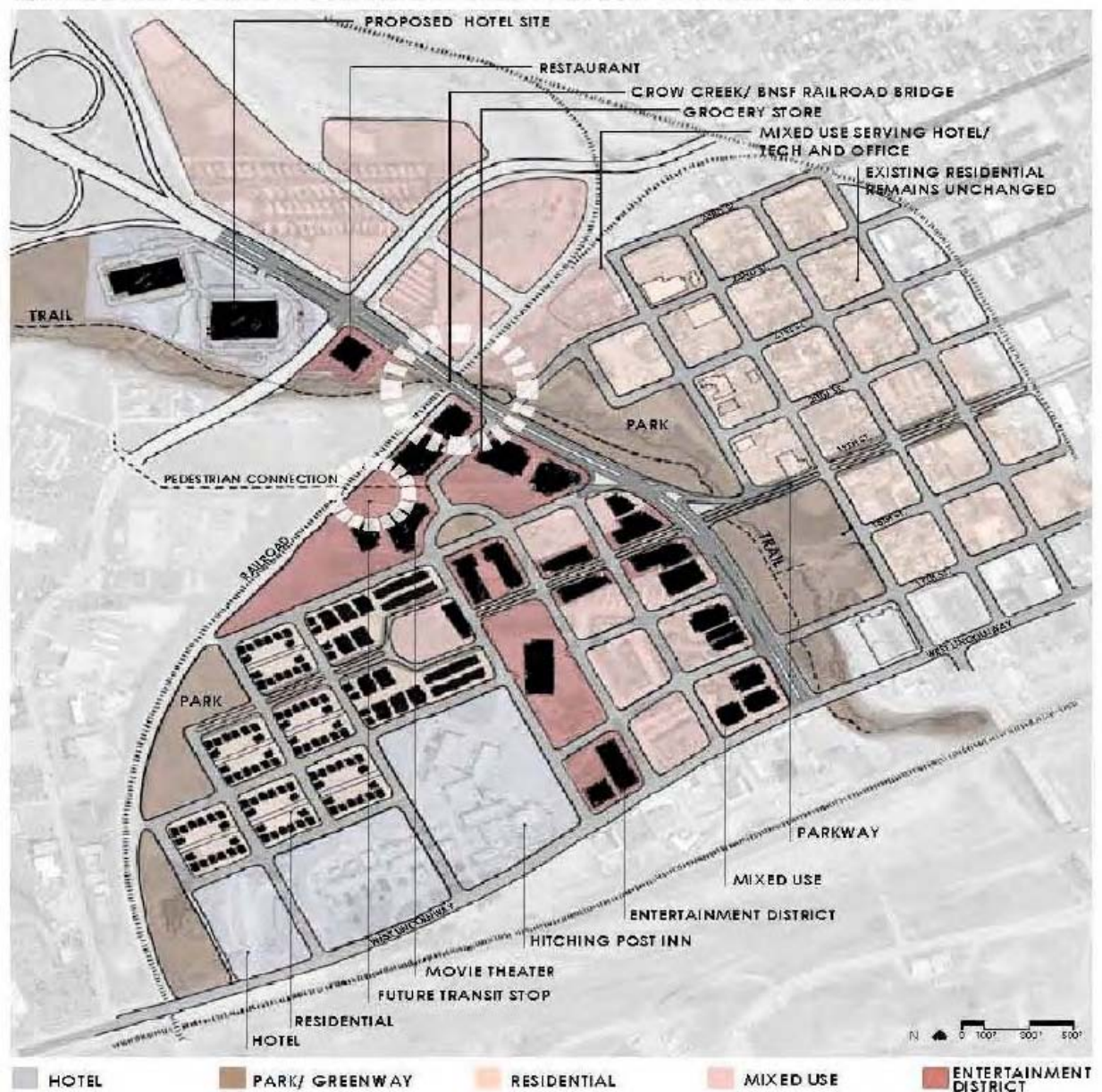
Zoning: The property is zoned CB, Community Business.

Other plans: The subject property is also included in the *Missile Drive Corridor Plan*, 2010, which states that “The long term vision for the corridor is a mixed use district that is an extension of downtown.” Figure 1 of that plan includes the north part of the subject property in a “potential economic development area.” Figure 2 indicates that hotel development is anticipated on the south portion of the property and the north portion could potentially include a mix of different types of residential development within a grid network of streets anchored by a transit stop and a new entertainment district to include the Ice & Events Center. As stated on page 2 of the plan: “Areas east of the BNSF crossing take on the character and scale of downtown, including a finer grained street network that encourages pedestrian connections across Missile Drive, mixed use building forward environments that have an address on Missile Drive, and greenway enhancements along the Crow Creek, which provide pedestrian connectivity along the entire corridor.”

More specifically, the plan shows extensions of 17th, 18th, and 19th Streets on the north portion of this property, which should be planned for when the property is platted. If no access to the north portion of the property is included, development of this area will be difficult, making it more likely to remain undeveloped.

Please see below a portion of Figure 2 from the *Missile Drive Corridor Plan*.

MISSILE DRIVE CORRIDOR LONG TERM VISION



REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Survey: Legal description and site dimensions appear in order.

Engineering: The submitted soils report does not satisfy the requirements of Section 1.16.030 (B)(2) of City Code, however the City Engineer's Office is willing to defer submission of a compliant soils report until construction plans are submitted.

Traffic Engineering:

1. Access to State Highways shall be in conformance to the WYDOT Access Manual and will be subject to approval of the WYDOT District Engineer (ref. Ch. 4, Section 4.2.6., RSSPDS).

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2. For adjacent plotted lots or developments within the City along arterials and collectors, access shall be provided through shared or joint driveway approaches, access easements and/or frontage roads (ref. Ch. 4., Section 4.3.4., RSSPDS).

Environmental Health: Laramie Co Small Wastewater System Regulations
201 Area Facilities Management Plan

The property is contiguous to the city limits and in the 201 Area. No small wastewater system permit can be issued. Property shall utilize public water and sewer.

County Planning: This annexation only deals with a portion of the County pocket. The entire pocket should be annexed.

MPO:

Requirements:

1. Please be advised that when development occurs on this parcel, it will need to meet all access requirements as per the 2005 WYDOT ACCESS Manual.
2. Access to this property should be planned from the western driveway of the property to the east or plan for a shared access. 2005 WYDOT ACCESS Manual, pg. 18.

Recommendations:

1. Please use the Missile Drive Landuse concept (see map below), adopted in 2010, as a guideline for road alignment and platting purposes. Full Plan can be found at: <http://www.plancheyenne.org/MissileDr.html>

Figure 4 Land Use Design Phase II

PHASING DIAGRAM

PHASE II: ESTABLISH AN ENTERTAINMENT AND MIXED USE DISTRICT



AECOM AVRES ASSOCIATES

MISSILE DRIVE CORRIDOR LONG TERM VISION

May 2010

WYDOT:

WYDOT access policy for urban sections between 35 and 45 mph require street spacing of 660 ft and access spacing of 330 ft.

Developed site must not increase storm runoff to highway right-of-way above pre-development rate.

AGENCIES RESPONDING WITHOUT COMMENT: BOPU, Cheyenne Light Fuel and Power, County Assessor, County Sheriff, Emergency Management, Drainage Engineer, Engineering Tech/GIS, Fire Department, Parks and Recreation, Police.

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AGENCIES NOT RESPONDING: Bresnan/Optimum, County Attorney, County Clerk, County Commissioners, County Fire District #2, County Public Works, School District, Laramie County Conservation District, Qwest/Century Link.

OTHER COMMENTS RECEIVED: None

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body of any city or town, at a hearing as provided in W.S. 15-1-405, shall find that:

- 1) The annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town. **Findings:** Future required connections to City services in the Urban Area helps prevent overuse of the aquifer and possible contamination from septic systems. Urban densities are most appropriately served by full-time professional fire services and City police.
- 2) The urban development of the area sought to be annexed constitutes a natural, geographical, economical, and social part of the annexing city or town. **Findings:** The property is approximately 55% contiguous to the existing City boundary. The site is located within the PlanCheyenne comprehensive plan area, which includes the following land use designations on the future land use plan: *Mixed-Use Commercial*.
- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed. **Findings:** The City has the capacity to serve more people and businesses with its water and sewer system. This area can be supported by City services, such as fire protection, police protection, and garbage collection. The proximity to existing urban development is an opportunity to provide City services in a fiscally responsible manner. PlanCheyenne advances urban development in this area and this area is located in the 201 boundary both of which would require new development to be connected to City sewer. Sewer service is available east side of the property adjacent to the east and water service is available in Lincolnway.
- 4) The area sought to be annexed is contiguous with the annexing city or town, or the area meets the requirements of W.S. 15-1-407. **Findings:** The property is approximately 55% contiguous with existing City limits.
- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. **Findings:** Franchises are in place to serve this property.
- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405 (a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405 (a). **Findings:** The required information was sent October 14, 2011, to meet the requirement of this provision.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.

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- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Sewer service is available to the property currently at the east side of the property adjacent to the east, which is under the same ownership as the subject property. Water lines exist in the adjacent Lincolnway. Police and fire services will be available upon annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees and for commercial units tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above, includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Encl: Annexation Resolution
Annexation Map

cc: File